



change their stance. It has been stated that the respondent does not want resumption of conjugal life with the appellant and has treated the appellant with cruelty at the time she was residing in her matrimonial house and has also deserted the appellant and, therefore, a prayer has been made for grant of a decree of divorce in favour of the appellant.

5. The respondent in spite of paper publication did not appear and the suit proceeded exparte.

6. The point for consideration was whether the respondent has treated the appellant with cruelty and whether the respondent without any reasonable cause had left the society of the appellant continuously for a period of more than two years.

7. The appellant had adduced oral evidence by examining himself as P.W.3 and Rajesh Kumar Pansari as P.W.1 and Bhuneshwar Choudhary as P.W.2. Since the learned Principal Judge, Family Court, Bokaro had come to a conclusion that the appellant has been able to prove cruelty as well as desertion against the respondent and accordingly had decided the said points of determination in favour of the appellant.

8. However, at the same time the learned court below had saddled the appellant with a permanent alimony to the tune of Rs. 5,00,000/- with which the appellant is aggrieved.

9. Mrs. Ritu Kumar, learned Amicus Curiae appearing for the appellant has submitted that various factors are taken into consideration while considering grant of permanent alimony but none of the factors appear to be present in the judgment dated 21.06.2019 and only on account of a presumption that the appellant cannot escape from his liability of making payment of permanent alimony an amount of Rs. 5,00,000/- has been awarded in favour of the respondent.

10. Mr. Ritu Kumar has further submitted that the amount of permanent alimony as directed against the appellant has not been preceded by any reasoning and therefore the said part of the judgment dated 21.06.2019 deserves to be set aside.

11. The appellant in view of the judgment dated 21.06.2019 in which the marriage between the appellant and the respondent has been dissolved has confined his prayer only with respect to the permanent alimony of Rs. 5,00,000/- which has been granted in favour of the respondent. On a perusal of the judgment dated 21.06.2019 more particularly paragraph 12 of the said judgment reveals that neither any reasoning has been given nor the relevant factors for consideration for grant of permanent alimony has been depicted in the said paragraph and only on account of the fact that since the marriage between both parties has been dissolved and the appellant cannot escape grant of permanent alimony in favour of the respondent the amount of Rs. 5,00,000/- has been awarded to the respondent.

12. In the case of "Jalander Patiari vs Pragati Chotre"

reported in AIR 2018 SC 2091, a similar issue in which a non-reasoned order was passed for grant of permanent alimony fell for consideration before the Hon'ble

Supreme Court and it was held as follows:

"15. In our view, mere perusal of the order of the Family Court and the High Court quoted supra, would go to show that both the Courts failed to apply their judicial mind to the factual and legal controversy insofar as award of permanent alimony to the respondent (wife) is concerned. Both the Courts did not even mention the factual narration of the case set up by the parties on the question of award of permanent alimony and without there being any discussion, appreciation, reasoning and categorical findings on the material issues such as, financial earning capacity of husband to pay the alimony and also the financial earning capacity of wife, a direction to pay Rs.15,00,000/- by way of permanent alimony to the wife was given. In our opinion, such direction is wholly unsustainable in law.

16. Time and again, this Court has emphasized on the Courts the need to pass reasoned order in every case, which must contain the narration of the bare facts of the case of the parties to the lis, the issues arising in the case, the submissions urged by the parties, the legal principles applicable to the issues involved and the reasons in support of the findings recorded based on appreciation of evidence on all the material issues arising in the case.

17. It is really unfortunate that neither the Family Court nor the High Court kept in mind these legal principles and passed cryptic and unreasoned orders. Such orders undoubtedly cause prejudice to the parties and in this case, it caused prejudice to the appellant(husband) because the orders of the High Court and Family Court deprived him to know the reasons for fixing the permanent alimony amount of Rs.15,00,000/- payable to his wife.

13. In "Vinny Parmvir Parmar vs. Parmvir Parmar" reported in (2011) 13 SCC 112, it has been observed that the amount of maintenance fixed for the wife should be such as she can live in a reasonable comfort considering her status and the mode of life she was used to when she lived with her husband. At the same time the amount so fixed cannot be excessive or affect the living condition of the other party.

14. It has been held in the case of "U Sree vs. U Srinivas"

reported in AIR 2013 SC 415, that while granting permanent alimony no arithmetic formula can be adopted as there cannot be mathematical exactitude and it shall depend upon the status of the parties, the respective social needs, the financial capacity of the husband and other obligations.

15. The factors enumerated above however have not at all been considered by the learned court below and by a cryptic and unreasoned order permanent alimony of Rs. 5,00,000/- has been granted in favour of the respondent. The same is not in consonance with the provisions of Section 25 of the Hindu Marriage Act, 1955.

16. We therefore come to a conclusion that the Judgment dated 21.06.2019 passed by Shri Peeush kumar, learned Principal Judge Family Court, Bokaro in Original Suit No. 262 of 2016 so far as grant of permanent alimony of Rs. 5,00,000/- in favour of the respondent is concerned is not sustainable in the eyes of law and therefore such direction is hereby set aside and the matter is remanded back to the learned Principal Judge Family Court, Bokaro to pass a fresh order in accordance with law so far as permanent alimony is concerned taking into consideration the various factors which guide the consideration of grant of permanent alimony.

17. We further make it clear that we have confined ourselves to only the illegality in the grant of permanent alimony to the respondent as challenge was made by the appellant only to that part of the judgment dated 21.06.2019.

18. This appeal is allowed.

(Rongon Mukhopadhyay, J.) (Deepak Roshan, J.) High Court of Jharkhand at Ranchi Dated, the 4th day of October, 2023.

Alok/NAFR